

MICROSOFT DISCOVERY PREVIEW AGREEMENT

This Microsoft Discovery Private Preview Agreement (“**Agreement**”) is an agreement between the party invited to participate (“**Customer**”) in the Microsoft Discovery private preview program (the “**Preview**”), and Microsoft Corporation (“**Microsoft**”). This Agreement governs Customer’s participation in the Preview, including use of any related technologies, tools, information, or other related materials.

This Agreement supplements and incorporates by reference the terms of the Customer Agreement (as defined below) and any additional license terms that may accompany specific technology provided by Microsoft under the Preview, (“**Additional Terms**”). In the event of a conflict between this Agreement and any such Additional Terms, the provisions of the Additional Terms will apply with respect to the specific technology governed by those Additional Terms.

BY USING OR ACCESSING THE PREVIEW, CUSTOMER ACCEPTS THIS AGREEMENT AND AGREES IT IS SUBJECT TO, AND WILL COMPLY WITH, THESE TERMS.

1) PREVIEW TERMS OF USE:

- a) **Preview Terms.** The Preview is provided under the terms governing Customer’s use of Microsoft Azure and Microsoft Generative AI Services, including: the [Azure Service Agreement](#); the Universal License Terms for Online Services section of the [Microsoft Product Terms](#) (including the Microsoft Generative AI Services and Limited Access Services terms); the [Microsoft Products and Services Data Protection Addendum](#) (the “**DPA**”); the General Terms section of the [Supplemental Terms of Use for Microsoft Azure Previews](#) (for clarity, this Agreement serves as the Service Specific Preview Terms for the Preview); and the [Microsoft Generative AI Services Code of Conduct](#) (collectively, the “**Customer Agreement**”), and subject to any terms applicable to “Previews” in the Customer Agreement. Capitalized terms used but not defined in this Agreement are defined in the Customer Agreement and the terms of the Customer Agreement are incorporated herein. In the event of any conflict with any other terms or conditions applicable to the subject matter of the Agreement, the terms and conditions of the Agreement will control.
- b) **Customer Determination of Appropriateness.** The Preview is pre-release technology. It may not operate correctly or at all. Customer will exercise its sole discretion in determining whether to use the Preview and is responsible for all controls, quality assurance, legal, regulatory or standards compliance, and other practices associated with its use of Preview. Preview is not a Covered Product for purposes of the Customer Copyright Commitment in the Microsoft Generative AI Services Terms. It is Customer’s responsibility to: (1) thoroughly test and evaluate whether use of the Preview is fit for Customer’s purpose, and (2) identify and mitigate any risks or harms to end users associated with its use. The Preview is provided with no service level agreement (e.g., for uptime, support issue resolution, etc.) and no customer support commitments. The terms regarding “previews” in the DPA will apply to the extent that the Preview is used to process Personal Data.
- c) **Customer Engagement with Microsoft.** Microsoft may contact Customer, request information or feedback about the Preview, or share information about Products or Services related to the Preview. Customer will use reasonable efforts to respond to reasonable requests from Microsoft related to the Preview. As provided in the Product Terms for Previews, Microsoft may freely use any suggestions, comments, input and other feedback Customer offers regarding the Preview or other Microsoft Products or Services.

- d) **Separate License Agreements.** Customer will obtain the rights to use any additional Microsoft or third-party products necessary for Customer's use of the Preview, including any underlying Azure or M365 Products or Services, through Microsoft's or third-party's separate licensing and distribution channels under separate license agreements.

2) RESTRICTIONS; ACCEPTABLE USE.

- a) The Acceptable Use Policy section of the [Microsoft Product Terms](#), the [Microsoft Generative AI Services Code of Conduct](#), and the Microsoft Discovery Code of Conduct, apply to Customer's use of the Preview.
- b) In addition, Customer's use of the Preview is subject to the following additional restrictions:
 - i) Customer may not use, or allow others to use, the Preview in any manner that could support, promote, facilitate or encourage violence, terrorism, or otherwise cause serious harm, including physical or environmental damage, or to design, develop, or otherwise interact with chemical, biological, radiological, or nuclear weapons.
 - ii) Customer is solely responsible for displaying and/or obtaining appropriate consents, warnings, disclaimers, and acknowledgements, including that the Preview is not intended, designed, or made available to be: (1) a medical device, or (2) a substitute for professional medical advice, diagnosis, treatment, or judgment and should not be used to replace or as a substitute for professional medical advice, diagnosis, treatment, or judgment.
 - iii) Customer may not, directly or indirectly, (1) provide any third party with access to the Preview; or (2) use the Preview on behalf of any third party, without Microsoft's express prior written approval.
- c) Violation of any of the restrictions in this section is deemed a High-Risk Use under the High-Risk Use section of the [Microsoft Product Terms](#) and Customer agrees that Microsoft will be entitled to the remedies provided therein for any damages or claims resulting from Customer's High-Risk Use.
- d) Violation of any of the restrictions in this section may result in immediate suspension of Customer's use of the Preview.

3) NON-MICROSOFT TECHNOLOGY. Microsoft may facilitate access to Non-Microsoft third-party technologies through Customer's use of the Preview, such as through a Microsoft online store (e.g., the Azure Marketplace or Azure AI Foundry) or as part of a curated catalog of suggested third-party offerings based on Customer's intended use of the Preview. To the extent Customer uses any such third-party technologies, all of the terms applicable to use of "Non-Microsoft Products" in the [Product Terms](#) apply to Customer's use of the Preview.

4) CONFIDENTIALITY. The Preview and any associated materials are Confidential Information, as defined in the separate Microsoft non-disclosure agreement entered into between Customer and Microsoft, which governs any disclosure of Confidential Information under this Agreement. If there is no separate non-disclosure agreement between Customer and Microsoft, then Confidential Information will have the meaning set forth in the Customer Agreement.

5) FEES. Customer may use other Microsoft Products or Services in connection with Customer's use of the Preview. Such other Products or Services may be subject to separate additional metered fees and costs. Customer is responsible for any costs or fees incurred by use of other Microsoft Products or Services needed to deliver Preview functionality. To the extent that

Microsoft charges Customer any costs or fees specific to Customer's use of the Preview, such charges do not impact the terms applicable to Previews included in the Customer Agreement.

- 6) TECHNICAL RESOURCES AND SUPPORT.** Microsoft may provide Customer with limited scope, no-cost technical human resources to enable use and evaluation of the Preview. Such resources are provided as "Professional Services" governed by the Professional Services Terms in the "Notices" section of the Microsoft Product Terms (available at: <https://www.microsoft.com/licensing/terms/product/Notices/all>) ("Professional Services Terms"). Microsoft is not obligated under this Agreement to provide Professional Services. For the avoidance of doubt, this Agreement applies solely to no-cost technical resources provided in connection with the Preview and does not apply to any other Microsoft consulting and support services (including paid-for services), which may be provided under separate agreement.
- 7) COMPLIANCE WITH TRADE LAWS.** Microsoft products, software, technology, and services ("**Items**") may be subject to U.S. and other countries' export jurisdictions. Each party will comply with all laws and regulations applicable to the import or export of the Items, including, without limitation, trade laws of the U.S., EU, and UK, such as the U.S. Export Administration Regulations, sanctions regulations administered by the U.S. Office of Foreign Assets Control, the EU Dual Use Regulation 2021/821, and/or other end-user, end use, and destination restrictions ("**Trade Laws**"). Customer will not, and will ensure its Affiliates will not, take any action that causes Microsoft to violate applicable Trade Laws. Customer remains responsible for its and for its Affiliates' compliance with this section.
- 8) TERM.** This Agreement is effective from Customer's first access of the Preview and will continue until either (i) terminated by Microsoft under Section 9 of this Agreement; (ii) Microsoft, at its sole discretion, discontinues the Preview; (iii) Microsoft makes the Preview generally commercially available under separate commercial license terms; or (iv) the parties enter into a superseding agreement governing Customer's access to the Preview or a successor product ("**Term**").
- 9) TERMINATION; SUSPENSION; SURVIVAL:**
- a) **Termination.** Microsoft may terminate this Agreement at any time. Upon termination or expiration of this Agreement, Customer will cease all use of the Preview and Microsoft will deactivate and remove Customer's access to the Preview. Upon such removal, Customer will no longer have access to the Preview and any data contained in the Preview, whether directly or indirectly managed by Microsoft.
 - b) **Suspension.** Microsoft may, in its sole discretion and for any reason or no reason, suspend performance under this Agreement, in whole, in part, immediately on written notice to Customer.
 - c) **Survival.** The provisions of this Agreement which, by their terms, require performance after the termination or expiration hereof, or have application to events that may occur after the termination or expiration hereof, will survive the termination or expiration of this Agreement.
- 10) LIMITATION OF LIABILITY.** TO THE MAXIMUM EXTENT PERMITTED BY LAW, IN NO EVENT WILL MICROSOFT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, PUNITIVE, SPECIAL, OR EXEMPLARY DAMAGES ARISING OUT OF OR THAT RELATE IN ANY WAY TO THE PREVIEW, THIS AGREEMENT, OR ITS PERFORMANCE. THIS

EXCLUSION WILL APPLY REGARDLESS OF THE LEGAL THEORY UPON WHICH ANY CLAIM FOR SUCH DAMAGES IS BASED, WHETHER MICROSOFT HAD BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, WHETHER SUCH DAMAGES WERE REASONABLY FORESEEABLE, OR WHETHER APPLICATION OF THE EXCLUSION CAUSES ANY REMEDY TO FAIL OF ITS ESSENTIAL PURPOSE. MICROSOFT'S TOTAL LIABILITY FOR ALL CLAIMS RELATED TO THE PREVIEW OR THIS AGREEMENT WILL NOT EXCEED (A) THE AMOUNT OF THE CHARGES PAID BY CUSTOMER SPECIFICALLY FOR THE MICROSOFT DISCOVERY PREVIEW DURING THE PREVIEW TERM (EXCLUDING ANY CHARGES ATTRIBUTABLE TO PRODUCTS OR SERVICES LICENSED UNDER A SEPARATE LICENSE AGREEMENT), NOT TO EXCEED 12 MONTHS, OR (B) IF THERE WERE NO CHARGES FOR THE PREVIEW, THEN FIVE THOUSAND US DOLLARS (US\$5,000). THIS CAP APPLIES WHETHER THE CLAIM IS IN CONTRACT, TORT, OR OTHERWISE.

11) MISCELLANEOUS

- a) **Expenses.** Each party will be responsible for all costs and expenses incurred by such party in connection with this Agreement or carrying out its performance or obligations under this Agreement.
- b) **Applicable Law and Dispute Resolution.** This Agreement will be subject to the Applicable Law and Dispute Resolution terms specified in the Customer Agreement.
- c) **Reservation of Rights.** All rights not expressly granted are reserved by the applicable rights holder, and no rights or licenses are granted (or deemed granted) by implication, estoppel, or exhaustion. This Agreement is nonexclusive.
- d) **Publicity.** Customer will not issue any press releases, publications, presentations, or other publicity related to its participation in the Preview or this Agreement without prior written approval from Microsoft. Microsoft may create documentation, films, photographs, referrals, quotations, or other recordings or materials that reference Customer's participation in the Preview.
- e) **No Joint Development.** The parties do not intend to jointly develop or jointly create any intellectual property rights under or in connection with this Agreement. If the parties anticipate the joint development or joint creation of any intellectual property rights at any time in their performance under this Agreement, they will negotiate in good faith an intellectual property rights agreement, before the creation of any such joint intellectual property rights.